

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISIDITION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No.1082 of 2023

Md. Mohin Uddin

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Abdulla Al Baki, Advocate

.... For the petitioner.

Mr. Sujit Chatterjee, D.A.G.with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Heard and Judgment on 20.02.2024

S M Kuddus Zaman, J:

On an application under section 498 of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the accused petitioner should not be enlarged on bail in Lohagora Police Station Case No.29 dated 24.05.2022 corresponding to G.R. Case No.200 of 2022 under Sections 8/9(3)/10/13 of the Shontrash Birodhi Ain, 2009 (Amended in 2013), now pending in the Court of learned Chief Judicial Magistrate, Chattogram and/or pass

such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that the accused petitioner Md. Mohin Uddin was arrested by RAB from Walton Service Centre on 24.05.2022 on the basis of secret information as to his involvement with proscribed militant organization Ansar al Islam and from his mobile telephone numerous posts were found propagating the murderous ideology of above proscribed militant organization.

Mr. Abdulla Al Baki, learned Advocate for the petitioner submits that the petitioner was an employee of Walton Service Centre, Chattogram. He was arrested by RAB on suspicion. But no incriminating material was recovered from his possession. He is in custody since 24.05.2022 but the investigation of the case has not yet been concluded.

Mr. Sujit Chatterjee, learned Deputy Attorney General for the State raises objection against granting of bail to the petitioner at this point of time.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It turns out from the record that the petitioner who is an employee of the Walton was arrested from the Walton Service Centre, Chattogram and from his possession no incriminating material excepting his mobile telephone was seized. He is in

custody in connection of this case since 24.05.2022. But the investigation of this case has not yet been concluded.

On consideration of above materials on record we find substance in this petition and the Rule issued in this connection deserve to be made absolute.

In the result, the Rule is made absolute.

Let accused-petitioner Md. Mohin Uddin, son of Md. Mohin Uddin be enlarged on bail subject to furnishing bail bond to the satisfaction of the learned Chief Judicial Magistrate, Chattogram.

The learned Judge of the Court below is at liberty to cancel the bail of the accused-petitioner if he misuses the privilege of bail in any manner whatsoever.

Communicate this judgment and order to the Court concerned at once.

Md Ali Reza, J:

I agree.

MD. MASUDUR RAHMAN
BENCH OFFICER